

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUEI066040: CITY OF SAN BUENAVENTURA vs 6200 LELAND STREET LLC, et al.

**08/17/2026 in Department 21
Motion for Order for Prejudgment Possession**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Order of Prejudgment Possession (*Unopposed*)

Tentative Ruling: The Court is inclined to GRANT Plaintiff City of San Buenaventura’s Motion for Order of Prejudgment Possession, subject to the City satisfying the qualifications stated below. The City’s request to vacate the August 17, 2026 hearing is DENIED.

First, not all defendants named in the complaint have been served with the complaint or this motion, particularly: (1) Dorothy B. Hofer, Trustee of the Phillip and Dorothy Hofer Trust Dated March 20, 1987; (2) Laura Jean Hofer, Trustee of the Amended and Restated Paul and Laura Jean Hofer Trust Dated November 19, 1988; (3) Paul B. Hofer, Jr., Trustee of the Amended and Restated Paul and Laura Jean Hofer Trust Dated November 19, 1988; and (4) Phillip F. Hofer, Trustee of the Phillip and Dorothy Hofer Trust Dated March 20, 1987. The Complaint lists these defendants as potential interest holders and parties to the CC&R’s. At the hearing on August 17, 2026, the City is to be prepared to address the status of these named defendants as is required by CCP § 1255.410(d), and the impact the lack of service on these parties has on this motion.

Next, the motion is unopposed within the meaning of Code Civ. Proc. § 1255.410(c). The subject property is vacant and unoccupied. The record owner received the required notice of the motion, and no defendant or occupant filed a written opposition within 30 days after service. Accordingly, Code Civ. Proc. § 1255.410(d)(1), rather than subdivision (d)(2), governs. Under subdivision (d)(1), the Court shall order possession if it finds that (1) the City is entitled to take the property by eminent domain, and (2) the City has deposited an amount satisfying the requirements of Code Civ. Proc. § 1255.010 et seq.

The first requirement is satisfied. The City Council adopted Resolution of Necessity No. 2026-20 after a noticed hearing and by more than a two-thirds vote, finding, among other things, that the public interest and necessity require the VenturaWaterPure Project, the Project is planned or located to achieve the greatest public good and least private injury, and the subject property is necessary for the Project. A properly adopted resolution of necessity generally conclusively establishes the matters specified in Code Civ. Proc. § 1240.030, and no statutory exception appears applicable here. (Code Civ. Proc. § 1245.250(a).)

The answers subsequently filed by the Hofer defendants and Argonaut assert objections to the City's right to take, including lack of necessity and, as to the Hofer defendants, alternative locations and public-use defenses. Those answers do not constitute timely oppositions to the present motion. They nevertheless require consideration under Code Civ. Proc. § 1255.430. On the present record, however, the objections do not establish a reasonable probability that defendants will prevail. The principal necessity objections concern matters conclusively established by the Resolution of Necessity, while the asserted joint-use and competing-public-use defenses are pleaded conditionally and without facts showing that this vacant parcel is presently devoted to another public use. Accordingly, no stay of possession under Code Civ. Proc. § 1255.430 appears warranted.

The City has also deposited \$3,628,000 with the State Treasury as probable compensation, corresponding to the valuation of its certified appraiser. Code Civ. Proc. § 1255.010 permits the deposit at any time before judgment, but requires that, before the deposit is made, a qualified expert have made the appraisal and prepared a written statement or summary of its basis. The City's May 21, 2026 deposit is established, and the appraisal materials support the amount deposited. However, because the appraisal summary filed July 1 was executed after the May 21 deposit, the present record does not expressly establish when the written appraisal or summary required by Code Civ. Proc. § 1255.010(b) was prepared.

The Court therefore declines the City's request to vacate the hearing. At the August 17 hearing, the City is to be prepared to establish that the appraisal and written appraisal statement or summary required by Code Civ. Proc. § 1255.010(b) were prepared before the May 21, 2026 deposit. Assuming that showing is made, the Court will find the requirements of Code Civ. Proc. § 1255.410(d)(1) satisfied and enter the order for prejudgment possession.

The Court further finds that the issues concerning the timing of service of the Notice of Deposit and the apparent clerical reference to "Stanislaus Council of Governments" in the lis pendens do not warrant denial of prejudgment possession. The City should correct the recorded lis pendens if that erroneous language appears in the recorded instrument and, to the extent not already done, serve the Notice of Deposit and appraisal materials on counsel for the parties who subsequently appeared.

Upon confirmation of compliance with Code Civ. Proc. §§ 1255.010(b) and 1255.410(d), possession shall be authorized effective August 31, 2026, or 10 days after service of the order for possession as required by law, whichever is later.

Plaintiff's counsel to give notice.

Discussion:

A. Legal Authority

1. Quick-Take Eminent Domain Actions

“The constitutional basis for eminent domain proceedings is section 19 of article I of the California Constitution, which states: [¶] ‘(a) Private property may be taken or damaged for a public use and only when just compensation, ascertained by a jury unless waived, has first been paid to, or into court for, the owner. The Legislature may provide for possession by the condemnor following commencement of eminent domain proceedings upon deposit in court and prompt release to the owner of money determined by the court to be the probable amount of just compensation.’” (*Robinson v. Sup. Ct. of Kern County* (2023) 88 Cal.App.5th 1144, 1158.)

“In a standard eminent domain proceeding, the government does not take possession and title until after judgment and full payment has been made; therefore, the “taking” and the “compensation” are contemporaneous. [Citation.] However, California eminent domain law has developed to allow a condemner to take early possession of the property before the litigation is concluded ‘upon deposit in court and prompt release to the owner of money determined by the court to be the probable amount of just compensation.’ (Cal. Const., art I, section 19, subd. (a); see section [Code Civ. Proc.] 1255.410; [Citation].) The immediate possession procedure also is referred to as a “quick-take” eminent domain action. [Citation.]” (*Medical Acquisition Co., Inc. v. Sup. Ct.* (2018) 19 Cal.App.5th 313, 323.)

“Under the quick-take procedure, a condemning agency, pursuant to section 1255.010, may accomplish an early taking of the subject property by making a deposit of the ‘probable amount of compensation’ at any time prior to entry of judgment. The amount of the deposit must be based on an appraisal by an expert qualified to express an opinion as to the value of the property and must be supported by a written statement of, or summary of the basis for, the appraisal. (Section 1255.010, subd. (b).) After a deposit of probable compensation has been made, the court may order that possession of the property be transferred to the condemner, after considering any opposition from the owner of the property and making certain findings regarding the public entity's legal right to take the property and the relative hardships that would befall the parties were title not transferred until after legal proceedings are completed. (Section 1255.410.) Once the deposit is made, the property owner can apply to withdraw ‘all or any portion of the amount deposited,’ and the court ‘shall order the amount requested in the application, or such portion of that amount as the applicant is entitled to receive, to be paid to the applicant.’ (Sections 1255.210, 1255.220.)” (*Medical Acquisition Co., supra*, 19 Cal.App.5th at pp. 323-324.)

“Additional ‘statutory procedural safeguards’ apply to the determination of probable compensation in quick-take proceedings. [Citation.] For example, at any time after a deposit has been made, the trial court shall, upon motion of any party with an interest in the property, ‘determine or redetermine whether the amount deposited is the probable amount of compensation that will be awarded in the proceeding.’ (Section 1255.030, subd. (a).) In ruling on the motion, the ‘court may order the plaintiff to increase the deposit or may deny the plaintiff possession of the property until the amount deposited has been increased to the amount specified in the order’;

or if possession has already transferred ‘order the amount deposited to be increased to the amount determined to be the probable amount of compensation,’ and if the plaintiff does not comply, dismiss the action and award litigation costs and damages to the defendant. (Section 1255.030, subds. (b), (c).)” (*Medical Acquisition Co., supra*, 19 Cal.App.5th at p. 324.) “Also, the Legislature saw fit to include certain protections for the condemning agency or other entities claiming any interest in the deposit. (See sections 1255.240, 1255.250.)” (*Id.*)

2. Moving for a Prejudgment Claim to a Right to Possession

(b) The plaintiff shall serve a copy of the motion on the record owner of the property and on the occupants, if any.

(Code Civ. Proc. § 1255.410(b).)

(d) (1) If the motion is not opposed within 30 days of ***service on each defendant*** and occupant of the property, the court shall make an order for possession of the property if the court finds each of the following:

(A) The plaintiff is entitled to take the property by eminent domain.

(B) The plaintiff has deposited pursuant to Article 1 (commencing with section 1255.010) an amount that satisfies the requirements of that article.

(2) If the motion is opposed by a defendant or occupant within 30 days of service, the court may make an order for possession of the property upon consideration of the relevant facts and any opposition, and upon completion of a hearing on the motion, if the court finds each of the following:

(A) The plaintiff is entitled to take the property by eminent domain.

(B) The plaintiff has deposited pursuant to Article 1 (commencing with section 1255.010) an amount that satisfies the requirements of that article.

(C) There is an overriding need for the plaintiff to possess the property prior to the issuance of final judgment in the case, and the plaintiff will suffer a substantial hardship if the application for possession is denied or limited.

(D) The hardship that the plaintiff will suffer if possession is denied or limited outweighs any hardship on the defendant or occupant that would be caused by the granting of the order of possession.

(Code Civ. Proc. § 1255.410(d), *emphasis added.*)

B. Application

1. Service.

The Complaint lists four defendants who have been named but not yet served, including (1) Dorothy B. Hofer, Trustee of the Phillip and Dorothy Hofer Trust Dated March 20, 1987; (2) Laura Jean Hofer, Trustee of the Amended and Restated Paul and Laura Jean Hofer Trust Dated November 19, 1988; (3) Paul B. Hofer, Jr., Trustee of the Amended and Restated Paul and Laura Jean Hofer Trust Dated November 19, 1988; and (4) Phillip F. Hofer, Trustee of the Phillip and Dorothy Hofer Trust Dated March 20, 1987. There is no proof of service for the complaint or the moving papers indicating these named defendants were served. As such, the motion is not in compliance with Code Civ. Proc. § 1255.410(d). At the hearing, the City shall be prepared to address this issue. If proper service has not been effected, the Court shall continue the hearing on this motion to allow the City time to cure this defect.

The court will next examine the merits of the motion.

The City has made the substantive showing necessary for prejudgment possession, and no served defendant filed a timely opposition to the motion under Code Civ. Proc. § 1255.410(c). The filed answers, however, contain objections to the City's right to take. Those objections do not appear to have a reasonable probability of success, but they provide a sound reason to retain the August 17 hearing rather than enter the possession order immediately on the papers.

2. The motion was properly noticed on the record owner and was not timely opposed.

Code Civ. Proc. § 1255.410 permits a condemning plaintiff, after filing the complaint and before judgment, to move for prejudgment possession. For unoccupied property, the motion must be served on the record owner and any occupants, and the hearing must be set at least 60 days after service on the record owner. Any defendant or occupant wishing to oppose must file and serve a written opposition within 30 days after service. If no timely opposition is filed, Code Civ. Proc. § 1255.410(d)(1) requires an order of possession if the court finds that the plaintiff is entitled to take the property and has made a qualifying deposit of probable compensation. The additional overriding-need and comparative-hardship findings of Code Civ. Proc. § 1255.410(d)(2) apply only where the motion is opposed within the 30-day period.

The City's evidence describes the subject parcel as vacant, unimproved, and unoccupied. The record owner, 6200 Leland Street LLC, was personally served with the motion on June 10, 2026, more than 60 days before the August 17 hearing. Argonaut Holdings (GM) LLC, which was added as Doe 5, was personally served on June 15 with the summons, complaint and amendment, lis pendens, complete motion papers, declarations, and proposed order.

Hofer Properties was served by substituted service on May 28, followed by mailing on May 29, with the summons, complaint, lis pendens, motion, supporting declarations, and proposed order. Substituted service was complete on the tenth day after mailing. (Code Civ. Proc. § 415.20.) Thus, Hofer Properties' service was complete by June 8.

No separate written opposition to the possession motion was filed. Hofer Properties and related defendants instead filed their answer on July 14, and Argonaut filed its answer on July 29. Even if those answers were treated as attempted oppositions to the possession motion, they came after

the applicable 30-day opposition periods. More importantly, neither pleading purports to be an opposition under Code Civ. Proc. § 1255.410(c). Accordingly, the motion remains unopposed for purposes of Code Civ. Proc. § 1255.410(d)(1), and the Court need not make the overriding-need and comparative-hardship findings required by Code Civ. Proc. § 1255.410(d)(2).

3. The City has established its entitlement to take, subject to consideration of the objections pleaded in the answers.

The City Council adopted Resolution of Necessity No. 2026-20 after a noticed hearing and by more than a two-thirds vote. The Resolution determined that the public interest and necessity require the VenturaWaterPure Project, that the Project is planned or located to provide the greatest public good and least private injury, that the subject property is necessary for the Project, and that the required acquisition offer was made. The complaint incorporates those findings.

Ordinarily, a resolution of necessity adopted pursuant to the statutory procedure conclusively establishes the matters identified in Code Civ. Proc. § 1240.030. The exceptions for utility property and property outside the public entity's boundaries do not appear applicable to this vacant parcel located within the City. Code Civ. Proc. § 1245.250(a)-(c). A resolution may still be challenged after commencement of the action through an objection to the right to take, including where its adoption or contents were affected by a gross abuse of discretion. Code Civ. Proc. § 1245.255.

The answers do assert purported right-to-take objections. The Hofer defendants allege lack of necessity, available alternatives, failure to make the required offer, failure to provide an appraisal and appraisal costs, joint use, and that the City's proposed use is neither a more necessary nor compatible public use. Argonaut asserts that there is no necessity for the taking under Code Civ. Proc. § 1240.030.

Those objections are distinct from an opposition to prejudgment possession. Code Civ. Proc. § 1250.350 permits a defendant to object to the right to take by answer, but requires the answer to identify both the specific legal ground and the specific facts supporting the objection. Thus, the fact that the answers were filed too late to constitute Code Civ. Proc. § 1255.410(c) oppositions does not itself eliminate properly pleaded right-to-take objections.

Nevertheless, the present objections do not appear to have a reasonable probability of success. The principal Hofer and Argonaut objections (lack of necessity, alternative locations, and lack of necessity for this particular parcel) are matters encompassed by Code Civ. Proc. § 1240.030. Code Civ. Proc. § 1250.370 makes those grounds independently contestable only where the plaintiff has not adopted a resolution of necessity conclusively establishing the Code Civ. Proc. § 1240.030 matters. Here, the City has adopted such a resolution, and the answers allege no specific facts suggesting gross abuse of discretion or another defect that would deprive the Resolution of its otherwise conclusive effect.

The Hofer defendants' compatible-use, more-necessary-public-use, and joint-use defenses are potentially different because Code Civ. Proc. § 1250.360 permits those objections

notwithstanding a resolution of necessity. But those defenses are pleaded conditionally and contain no facts establishing that this vacant, unimproved parcel is presently devoted to another public use. On the present record, they therefore do not demonstrate a substantial likelihood of defeating the taking.

This distinction matters under Code Civ. Proc. § 1255.430. When a defendant has objected to the plaintiff's right to take, a possession order must be stayed if the court finds a reasonable probability that the defendant will prevail on that objection. (*Israni v. Superior Court* (2001) 88 Cal.App.4th 621, 632-633.) The present answers do not appear to satisfy that threshold.

4. The probable-compensation deposit is adequate in amount, although the timing of the written appraisal materials should be confirmed.

Code Civ. Proc. § 1255.010(a) permits the condemning plaintiff to deposit probable compensation at any time before judgment. The deposit must be based upon an appraisal satisfying Code Civ. Proc. § 1255.010(b). *Before* making the deposit, the plaintiff must have a qualified expert both make the appraisal and prepare a written statement or summary sufficiently explaining its basis.

The City deposited \$3,628,000 with the State Treasury on May 21, 2026. Its certified appraiser, Kevin P. McAtee, valued the property at the same amount after investigating the property and considering zoning, highest and best use, comparable transactions, and other valuation information. The appraisal identifies the property as 105,633 square feet of vacant land, commercial as its highest and best use, a September 30, 2025 valuation date, and a \$3,628,000 fair-market value. The detailed calculation reaches \$3,627,855, rounded to \$3,628,000.

There remains a limited evidentiary issue concerning chronology. The appraisal summary filed July 1 was executed by McAtee on June 23, after the May 21 deposit. Code Civ. Proc. § 1255.010(b) does not require that the written appraisal materials be filed before the deposit, but it does require that the appraisal and written statement or summary have been *prepared* before the deposit. The May 26 moving papers already referred to McAtee's \$3.628 million appraisal, strongly suggesting that the underlying appraisal had been completed by then, but the present record does not expressly establish when the qualifying written statement or summary was prepared.

That ambiguity does not warrant denial at this stage, but it is another reason to retain the hearing. The Court should obtain confirmation, preferably by sworn declaration, that the appraisal and written appraisal materials required by Code Civ. Proc. § 1255.010(b) existed before the May 21 deposit. If so, the deposit requirement is satisfied.

5. The Notice of Deposit substantially complies with Code Civ. Proc. § 1255.020, with any issue concerning later appearances readily curable.

No party had appeared when the City made its May 21 deposit. Code Civ. Proc. § 1255.020 therefore did not require service upon an appearing party at that time. The statute requires notice to parties who have appeared and requires parties who appear later to be served upon their

appearance; the notice must identify the deposit's date and amount and be accompanied by the appraisal statement or summary.

The City filed and mailed the Notice of Deposit and appraisal summary on July 1. By then, Hofer Properties and Argonaut had already been served with summons, permitting service by mail under the service provisions incorporated through Code Civ. Proc. §§ 1255.020 and 1255.450. The appraisal summary's proof of service specifically lists Hofer Properties, Hofer Properties LLC, Ventura 34, LLC, Argonaut, and the other identified defendants.

The Hofer defendants and Argonaut thereafter appeared on July 14 and July 29. A literal reading of Code Civ. Proc. § 1255.020 contemplates service upon a party when it later appears. Because these parties had already received the Notice and appraisal materials before appearing, no prejudice is apparent. Nevertheless, if the City did not thereafter serve their counsel, the Court directs it to do so and file proof of service. This is readily curable and does not justify denial of possession.

6. The lis pendens does not present a substantive obstacle to prejudgment possession.

The complaint was filed May 11, 2026. The Notice of Pendency was filed May 14 and appears to have been recorded with the Ventura County Recorder on May 15. The notice correctly identifies the City, the eminent-domain action, the subject parcel, APN 138-0-230-700, and the fee interest sought. The additional proofs now establish that the lis pendens was served with the summons and complaint upon Hofer Properties and Argonaut.

Exhibit 1 to the lis pendens contains the apparent clerical reference to the “*Stanislaus Council of Governments*.” This error should be corrected in the recorded instrument, but the notice otherwise unmistakably identifies this action, the City, and the property. More importantly for this motion, Code Civ. Proc. § 1255.410(d)(1) identifies the operative possession requirements as the plaintiff's entitlement to take and a qualifying deposit. The clerical error therefore does not provide a basis to deny prejudgment possession.

7. The August 17 hearing should remain on calendar.

The City requests immediate entry of its proposed order and vacation of the August 17 hearing on the ground that Code Civ. Proc. § 1255.410(d)(1) makes issuance mandatory when the motion is unopposed. The City is correct that Code Civ. Proc. § 1255.410(d)(1), unlike Code Civ. Proc. § 1255.410(d)(2), does not require completion of a hearing. Once its two statutory findings are established, the court must order possession.

The statute does not, however, *require* the Court to vacate a hearing already set. Here, retaining the hearing is preferable for three reasons. First, the answers now place right-to-take objections before the Court, requiring consideration of whether Code Civ. Proc. § 1255.430 calls for a stay. Second, the Court can obtain a straightforward confirmation that the written appraisal materials required by Code Civ. Proc. § 1255.010(b) existed before the May 21 deposit. Third, the City is to address the issue as to the service or lack thereof, of the complaint and moving papers on the 4 listed defendants noted above.

Accordingly, the hearing need not become a full Code Civ. Proc. § 1255.410(d)(2) hardship hearing. The motion remains unopposed under Code Civ. Proc. § 1255.410(d)(1). The hearing can instead be limited to confirming the statutory prerequisites and determining whether the pleaded right-to-take objections present a reasonable probability of success requiring a stay.